

THE STATE OF NEW HAMPSHIRE

JUDICIAL BRANCH

http://www.courts.state.nh.us

Court Name:

Case Name:

Case Number: (if known)

Charge ID:

PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD NON-CONVICTION:

For offenses resolved 01/01/2019 or later

PLEASE COMPLETE A SEPARATE FORM FOR EACH OFFENSE

| APPLICANT'S INFORMATION    |       |                |                   |
|----------------------------|-------|----------------|-------------------|
| Full Name:                 |       | Date of Birth: |                   |
| Address:                   |       |                |                   |
| City/Town                  | State | Zip Code       | Telephone Number: |
| E-mail Address: (optional) |       |                |                   |

| CHARGE INFORMATION AND APPLICANT'S CERTIFICATION<br>(Select all checkboxes that apply)                                                                                                                                                                                                                                                                                                                                                                         |              |                      |                         |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|----------------------|-------------------------|
| <input type="checkbox"/> No charges were ever filed in court. The applicant seeks only annulment of any record of arrest.                                                                                                                                                                                                                                                                                                                                      |              |                      |                         |
| RSA/Statute:                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Charge:      | Date of Arrest:      | Law Enforcement Agency: |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                |              |                      |                         |
| <input type="checkbox"/> Charges were filed, but were dismissed, not prosecuted ( <i>nolle prossed</i> ), or the conviction was vacated. The applicant seeks annulment of any record of arrest and the offense/charge.                                                                                                                                                                                                                                         |              |                      |                         |
| Charge:                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Charge Date: | Date of Disposition: | Disposition Type:       |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                |              |                      |                         |
| <div>For petitions with charges filed:</div> <div><input type="checkbox"/> The applicant states this offense is eligible for annulment as it has been at least 30 days following the entry of the non-conviction disposition if an appeal was not taken, or upon final determination of the appeal affirming the disposition.</div> <div><input type="checkbox"/> The applicant was found NOT GUILTY of all other charges stemming from the same arrest.</div> |              |                      |                         |

THE STATE OF NEW HAMPSHIRE

JUDICIAL BRANCH

http://www.courts.state.nh.us

Court Name:

Case Name:

Case Number: 2023CR004182 (if known)

Charge ID:

Clear Form

Lock & Save Form

PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD NON-CONVICTION:

For offenses resolved 01/01/2019 or later

PLEASE COMPLETE A SEPARATE FORM FOR EACH OFFENSE

| APPLICANT'S INFORMATION                                    |       |                              |                   |
|------------------------------------------------------------|-------|------------------------------|-------------------|
| Full Name:<br>Marion T. Ellsworth                          |       | Date of Birth:<br>1988-04-17 |                   |
| Address:<br>418 Sycamore Ridge Road                        |       |                              |                   |
| City/Town                                                  | State | Zip Code<br>03301            | Telephone Number: |
| E-mail Address: (optional)<br>marion.ellsworth@example.com |       |                              |                   |

| CHARGE INFORMATION AND APPLICANT'S CERTIFICATION<br>(Select all checkboxes that apply)                                                                                                                                                                                                                                                                                                                                                                         |              |                      |                         |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|----------------------|-------------------------|
| <input type="checkbox"/> No charges were ever filed in court. The applicant seeks only annulment of any record of arrest.                                                                                                                                                                                                                                                                                                                                      |              |                      |                         |
| RSA/Statute:                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Charge:      | Date of Arrest:      | Law Enforcement Agency: |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                |              |                      |                         |
| <input type="checkbox"/> Charges were filed, but were dismissed, not prosecuted ( <i>nolle prossed</i> ), or the conviction was vacated. The applicant seeks annulment of any record of arrest and the offense/charge.                                                                                                                                                                                                                                         |              |                      |                         |
| Charge:                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Charge Date: | Date of Disposition: | Disposition Type:       |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                |              |                      |                         |
| <div>For petitions with charges filed:</div> <div><input type="checkbox"/> The applicant states this offense is eligible for annulment as it has been at least 30 days following the entry of the non-conviction disposition if an appeal was not taken, or upon final determination of the appeal affirming the disposition.</div> <div><input type="checkbox"/> The applicant was found NOT GUILTY of all other charges stemming from the same arrest.</div> |              |                      |                         |

Case Name: \_\_\_\_\_  
Case Number: \_\_\_\_\_  
PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD (NON-CONVICTION)

I swear or affirm, under penalties of law, that the above facts are true and correct to the best of my knowledge.

|       |                       |
|-------|-----------------------|
| _____ | _____                 |
| Date  | Applicant's Signature |
|       | _____                 |
|       | Name of Counsel       |
|       | _____                 |
|       | Counsel's Signature   |
|       | _____                 |
|       | Address               |
|       | _____                 |
|       | Address               |

FOR COURT USE ONLY:

IT IS ORDERED AND CERTIFIED:

| CERTIFICATE OF ANNULMENT                                                                                                                                                                                                                                                                                              |                       |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------|
| <input type="checkbox"/> That the record of arrest is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.                                                                                                                                                            |                       |
| <input type="checkbox"/> That the record of the charge and disposition of dismissal, acquittal or <i>nolle prosequi</i> in the above referenced matter, together with any record of arrest or charge therein, is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute. |                       |
| <input type="checkbox"/> The Court DENIES the applicant's petition for the following reason(s):<br>_____<br>_____                                                                                                                                                                                                     |                       |
| _____                                                                                                                                                                                                                                                                                                                 | _____                 |
| Date                                                                                                                                                                                                                                                                                                                  | Signature of Judge    |
|                                                                                                                                                                                                                                                                                                                       | _____                 |
|                                                                                                                                                                                                                                                                                                                       | Printed Name of Judge |

|                                                  |                                                             |
|--------------------------------------------------|-------------------------------------------------------------|
| CC: <input type="checkbox"/> Prosecutor          | <input type="checkbox"/> Defendant                          |
| <input type="checkbox"/> Defense Attorney        | <input type="checkbox"/> Dept. of Safety – Criminal Records |
| <input type="checkbox"/> DMV                     | <input type="checkbox"/> Dept. of Corrections               |
| <input type="checkbox"/> _____ Police Department | <input type="checkbox"/> Other _____                        |
| <input type="checkbox"/> Attorney General        | <input type="checkbox"/> _____ District Division #          |
| <input type="checkbox"/> Sentence Review         |                                                             |

Case Name: \_\_\_\_\_  
Case Number: 2023CR004182  
PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD (NON-CONVICTION)

I swear or affirm, under penalties of law, that the above facts are true and correct to the best of my knowledge.

|       |                       |
|-------|-----------------------|
| _____ | _____                 |
| Date  | Applicant's Signature |
|       | _____                 |
|       | Name of Counsel       |
|       | _____                 |
|       | Counsel's Signature   |
|       | _____                 |
|       | Address               |
|       | _____                 |
|       | Address               |

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| <input type="checkbox"/> The Court DENIES the applicant's petition for the following reason(s):<br>_____<br>_____                                                                                                                                                                                                     |                       |
| _____                                                                                                                                                                                                                                                                                                                 | _____                 |
| Date                                                                                                                                                                                                                                                                                                                  | Signature of Judge    |
|                                                                                                                                                                                                                                                                                                                       | _____                 |
|                                                                                                                                                                                                                                                                                                                       | Printed Name of Judge |

|                                                  |                                                             |
|--------------------------------------------------|-------------------------------------------------------------|
| CC: <input type="checkbox"/> Prosecutor          | <input type="checkbox"/> Defendant                          |
| <input type="checkbox"/> Defense Attorney        | <input type="checkbox"/> Dept. of Safety – Criminal Records |
| <input type="checkbox"/> DMV                     | <input type="checkbox"/> Dept. of Corrections               |
| <input type="checkbox"/> _____ Police Department | <input type="checkbox"/> Other _____                        |
| <input type="checkbox"/> Attorney General        | <input type="checkbox"/> _____ District Division #          |
| <input type="checkbox"/> Sentence Review         |                                                             |